

Approved as to
form only:

MHD
Date: 6/4/21

CONTRACT NO. _____

**AGREEMENT BETWEEN THE CITY OF CHEYENNE
AND BRIAN CHALSTROM D/B/A PUTT HUTT**

THIS AGREEMENT is made and entered into this ____ day of _____, 2021, by and between the City of Cheyenne, a municipal corporation of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter "City or Lessor," and Brian Chalstrom, collectively and individually, doing business as the Putt Hutt, whose address is 4603 Lions Park Drive, Cheyenne, Wyoming 82001, hereinafter "Lessee."

WITNESSETH:

WHEREAS, Lessor has authority under the laws of the State of Wyoming and its own ordinances and resolutions to own real property and to lease such property upon terms and for such purposes as are in the public interest; and

WHEREAS, the obligation imposed on Lessee in this Agreement shall constitute the individual and personal obligations of the individuals listed in the first paragraph of this Agreement; and

WHEREAS, the parties desire to enter into a new lease agreement upon the terms and conditions hereinafter contained.

NOW, THEREFORE, for and in consideration of the premises and of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

1. **LEASED AREA:** Lessor hereby leases to Lessee all of those premises situate in Cheyenne, Wyoming, known as the Putt Hutt miniature golf course, as shown on Exhibit "A" attached hereto and incorporated herein by this reference, together with all improvements thereon. The leased area shall also include the six (6) designated parking spaces currently used by the Putt Hutt and marked with "Putt Hutt Parking Only" signs, from May 1 through September 30. Lessee may not sublet designated parking spaces nor charge a fee for such parking spaces. The "Putt Hutt Parking Only" signs must be removed at the end of operations on September 30 of each year.

2. **TERM:** This Agreement shall commence from the date of the last signature affixed and shall expire September 30, 2026, unless sooner terminated as provided herein.

3. **TENANT'S ACCEPTANCE OF PROPERTY:** Neither Lessor nor its agents have made any representations with respect to the leased property except as expressly set forth herein and

no rights, easements, or licenses are acquired by Lessee by implication or otherwise, except as expressly set forth in the provisions of this Agreement. The taking of possession of the leased property by Lessee shall be conclusive evidence that Lessee accepts the same “as is” and that the leased property was in good condition at the time possession was taken.

4. **RENT:** Lessee shall pay to Lessor as rent for said premises, with five percent (5%) increments each year, as follows:

<u>Year</u>	<u>Amount</u>
2022	\$1,260.00
2023	\$1,323.00
2024	\$1,389.15
2025	\$1,458.61
2026	\$1,531.54

The annual rent payment shall be paid on or before July 31 of each year. Payments are to be made at the City Clerk’s Office and made payable to the City Treasurer.

5. **USE OF PREMISES:** The premises hereby leased are to be used by Lessee only as a miniature golf course, a concession operation, and the sale of novelties that advertise the operation. Lessee agrees to maintain and operate said miniature golf course in due conformance with all the laws of the State of Wyoming, of the United States, and ordinances of the City of Cheyenne. Lessee understands and agrees that the right to operate a concession stand at Lion’s Park is not exclusive. Lessee agrees to obtain the written consent of Lessor’s Community Recreation and Events Department for forms of entertainment and activities not specifically enumerated. In general, alcohol is not permitted during regular business hours. However, when reserving for a special event closed to the public, additional liquor liability insurance will be required along with a permit from the City Clerk, and written permission from the Community Recreation and Events Director, or his or her Deputy Director, and the Chief of Police.

6. **ASSIGNMENT AND SUBLETTING:** Lessee shall not sublet to any person the premises herein described, or any part thereof, or assign any right or privilege conferred upon Lessee hereunder without first obtaining, in writing, the consent of Lessor. Such consent may not be unreasonably withheld. Lessee further agrees that any sale of ownership, or portion thereof, of Lessee’s business by Lessee which conveys control of said business shall be understood to terminate this Agreement. Lessee further agrees that any attempt to assign, without first obtaining said written consent, shall cause the Agreement to completely terminate, however, nothing herein shall be

construed to prevent Lessee from obtaining a third person or persons to perform the actual operation of said facilities, to pay for said services either in a fixed amount or by division of profits upon agreement and approval of Lessor.

7. **MAINTENANCE:** Lessee hereby agrees to use said premises in a safe and proper manner at all times, to maintain said premises in a neat and clean condition, and to return said premises to Lessor on the termination of this Agreement in as good as condition as when entered upon, Acts of God and ordinary wear and tear excepted.

8. **DEBTS:** Lessee hereby agrees not to incur any indebtedness which will or may become a lien or encumbrance upon the premises herein leased, not to allow any mechanic's, builder's or materialman's liens to be filed thereon. Any such liens or encumbrances shall be paid, discharged, and released of record at the expense of Lessee.

9. **ALTERATIONS:** Lessee shall not make major improvements, modifications, or alterations to said premises except with the knowledge and written consent of Lessor, such consent shall not be unreasonably withheld.

10. **FIXTURES:** All improvements to the premises shall become the property of the Lessor at the expiration of the Agreement. Lessee shall retain possession of its personal property. Upon termination of this Agreement, regardless of the manner in which its interest may terminate, Lessee will remove all of its personal property from the premises.

11. **INDEMNITY:** The Lessee agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Lessee's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Lessee, or its employees or subcontractors in the performance of this Agreement. The Lessee acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

12. **GOVERNMENTAL IMMUNITY:** The City of Cheyenne expressly reserves its right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the

Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

13. **INSURANCE:** Lessee must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Lessee shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Additional Insurance Information

The Lessee shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of workers' compensation, and shall provide the City with a copy of the endorsements.

Lessee shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Lessee to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Lessee shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Lessee's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A.M. Best rating of A- (excellent).

14. **DEFAULT:** In the event Lessee shall default in the performance of any of the terms and conditions of this Agreement including, but not limited to, the payment of rent, and shall fail to cure said default within thirty (30) days of written notice thereof from Lessor, Lessor shall have the right to terminate this Agreement and re-enter the leased premises, and Lessee agrees to peacefully surrender possession.

15. **WAIVER:** Failure of Lessor to promptly demand performance of any terms of this Agreement shall not be a waiver of the terms and Lessor may subsequently enforce any such term.

16. **TAXES:** Lessee agrees to be responsible for payment of all real estate and personal property taxes assessed against the leased premises.

17. **UTILITIES:** Lessee agrees to be responsible for payment of electric, gas, water, sanitation, telephone utilities and repairs, or other improvements.

18. **ACCOUNTING:** Lessee shall maintain financial records concerning said miniature golf course in accordance with generally accepted accounting principles which shall be open at all times for inspection by Lessor. Lessee shall furnish Lessor an annual statement of income, annual statement of changes in financial position, and a balance sheet delivered to the Office of the City Clerk, accompanying the annual rental payment for the lease, by October 30 following each season of operation.

19. **ALCOHOL AND CONTROLLED SUBSTANCE POLICY:** Lessee agrees to provide a drug free workplace in accordance with the City of Cheyenne's Alcohol and Controlled Substance Policy.

20. **EEOC COMPLIANCE:** All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex. The parties further assure that it will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to similarly include this clause therein.

21. **ADA COMPLIANCE:** The Lessee is hereby notified that it must comply fully with

all requirements of the Equal Employment Opportunity Commission (EEOC) and the Americans with Disability Act (ADA) in the same manner as is expected from the City of Cheyenne. If the Lessee or its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The Lessee shall be responsible for all such non-compliant action and shall defend, hold harmless, and indemnify the City of Cheyenne therefrom.

22. **GOVERNING LAW, JURISDICTION, AND VENUE:** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

23. **SEVERABILITY:** If any clause, sentence, paragraph or any part of this Agreement, or the application thereof to any person or circumstance, shall for any reason be adjudged by a court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remainder of the Agreement.

24. **COMPLIANCE WITH LAWS:** The parties covenant and agree that they will perform their obligations as provided in this Agreement with all applicable laws and ordinances.

25. **ENTIRE AGREEMENT, MODIFICATIONS IN WRITING ONLY:** This Agreement constitutes the entire understanding of the parties and there are no other terms or conditions, oral or written, concerning this matter. This Agreement may not be modified except by mutual agreement of the parties in writing. Time is of the essence in all provisions of this Agreement.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed as of the day and year first above written.

CITY OF CHEYENNE

BY:

Patrick Collins, Mayor

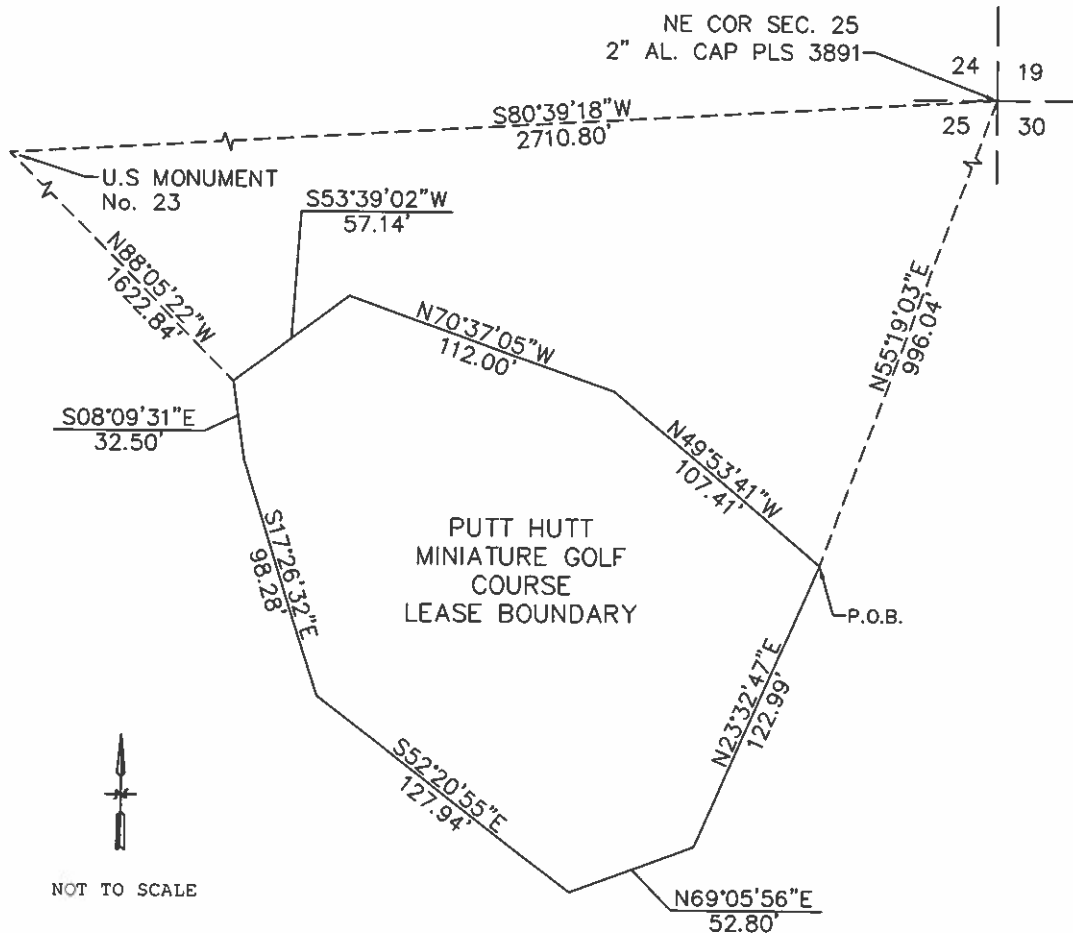
(SEAL)
Attest:

Kristina F. Jones, City Clerk

PUTT HUTT

BY:

Brian Chalstrom



LEASE DESCRIPTION - EXHIBIT A

PUTT HUTT MINIATURE GOLF COURSE AT LIONS PARK

A PARCEL OF LAND SITUATE IN LIONS PARK IN THE NE1/4NE1/4 OF SECTION 25, TOWNSHIP 14 NORTH, RANGE 67 WEST, 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT FROM WHICH THE NORTHEAST CORNER OF SAID SECTION 25 BEARS N55°19'03"E, A DISTANCE OF 996.04 FEET; THENCE N49°53'41"W, A DISTANCE OF 107.41 FEET TO A POINT; THENCE N70°37'05"W, A DISTANCE OF 112.00 FEET TO A POINT; THENCE S53°39'02"W, A DISTANCE OF 57.14 FEET TO POINT FROM WHICH U.S. MONUMENT NO. 23 BEARS N88°05'22"W, A DISTANCE OF 1622.84 FEET; THENCE S08°09'31"E, A DISTANCE OF 32.50 FEET TO A POINT; THENCE S17°26'32"E, A DISTANCE OF 98.28 FEET TO A POINT; THENCE S52°20'55"E, A DISTANCE OF 127.94 FEET TO A POINT; THENCE N69°05'56"E, A DISTANCE OF 52.80 FEET TO A POINT; THENCE N23°32'47"E, A DISTANCE OF 122.99 FEET TO THE POINT OF BEGINNING.

CONTAINING 0.79 ACRE OR 34,332 SQUARE FEET MORE OR LESS. THIS DESCRIPTION IS NOT INTENDED TO BE USED FOR THE TRANSFER OF TITLE OF REAL PROPERTY, BUT IS INTENDED TO DESCRIBE PUTT HUTT'S MINIATURE GOLF COURSE LEASE BOUNDARY ONLY.



CITY OF CHEYENNE
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CHEYENNE, WYOMING 82001
(307) 637-6274